



POLICE DEPARTMENT

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In the Matter of the Disciplinary Proceedings :
- against - : FINAL
Police Officer Denton Lewis : ORDER
Tax Registry No. 901836 : OF
Military & Extended Leave Desk : DISMISSAL
-----X

Police Officer Denton Lewis, Tax Registry No. 901836, Shield No. 6932, Social Security No. ending in [REDACTED] having been served with written notice, has been tried on written Charges and Specifications numbered 84301/08 as set forth on form P.D. 468-121, dated May 6, 2009, and written Charges and Specifications numbered 85089/09 as set forth on form P.D. 468-121, dated February 11, 2009, and after a review of the entire record, has been found Guilty as Charged.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Denton Lewis from the Police Service of the City of New York.


RAYMOND W. KELLY
POLICE COMMISSIONER

EFFECTIVE: 10/7/2009 2400Hrs



POLICE DEPARTMENT

August 11, 2009

-----X
In the Matter of the Charges and Specifications : Case Nos. 84301/08
: & 85089/09
- against - :
Police Officer Denton Lewis :
Tax Registry No. 901836 :
Military & Extended Leave Desk :
-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable Robert W. Vinal
Assistant Deputy Commissioner - Trials

APPEARANCE:

For the Department: Mark Berger, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent: John Tynan, Esq.
Worth, Longworth & London, LLP
111 John Street
New York, NY 10038

To:

HONORABLE RAYMOND W. KELLY
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

The above-named member of the Department appeared before me on May 13 and 14, 2009, charged with the following:

Disciplinary Case No. 84301/08

1. Said Police Officer Denton Lewis, assigned to the Military & Extended Leave Desk, on or about and between December 7, 2006 and June 7, 2008, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer did wrongfully ingest cocaine without police necessity or authority to do so.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

2. Said Police Officer Denton Lewis, assigned to the Military & Extended Leave Desk, on or about and between December 7, 2006 and June 7, 2008, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer did wrongfully possess cocaine without police necessity or authority to do so.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

3. Said Police Officer Denton Lewis, assigned to the Military & Extended Leave Desk, on or about and between January 19, 2008 and July 31, 2008, did knowingly associate with a person reasonably believed to be engaged in, likely to engage in or to have engaged in criminal activities.

P.G. 203-10, Page 1, Paragraph 2(c) – PUBLIC CONTACT, PROHIBITED CONDUCT, GENERAL REGULATIONS

4. Said Police Officer Denton Lewis, assigned to the Military & Extended Leave Desk, on or about June 7, 2008 did engage in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Police Officer did wrongfully possess a 2007 New York City Police Department Parking Permit.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

5. Said Police Officer Denton Lewis, assigned to the Military & Extended Leave Desk, on or about June 7, 2008 did engage in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer did wrongfully fail to safeguard a 2008 New York City Police Department Parking Permit.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

Disciplinary Case No. 85089/09

1. Said Police Officer Denton Lewis, assigned to the Military & Extended Leave Desk, on or about February 6, 2009, at a location known to this Department, in Queens County, intentionally exposed the private or intimate parts of his body in a lewd manner or committed any other lewd act in a public place.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
N.Y.S. Penal Law Section 245.00 – PUBLIC LEWDNESS

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges and a stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Disciplinary Case No. 84301/08

The Respondent is found Guilty.

Disciplinary Case No. 85089/09

The Respondent is found Guilty.

SUMMARY OF EVIDENCE PRESENTED

Introduction

Since these two disciplinary cases involve different instances of off-duty misconduct, the testimony and evidence that was presented regarding each case will be summarized separately.

Disciplinary Case No. 84301/08

The Department's Case

The Department called Lieutenant John Perrone, Dr. Thomas Cairns, Police Officer Tolentino Nazaire, and Lieutenant Edward Gonzalez as witnesses.

Lieutenant John Perrone

Lieutenant Perrone testified that he is a 13-year member of the service who is assigned to Internal Affairs Bureau (IAB) Group 9. On June 7, 2008, he was directed by Captain McCarthy of Group 9 to transport the Respondent from the 70 Precinct to the Medical Division "to take a DOLE for cause" and that a urine sample and hair samples would be collected from the Respondent.

Inside the Medical Division's Drug Screening Unit, the Respondent was assigned drug screening number AV-05-08-QH. The Respondent wrote his name, shield number, tax number and social security number on a "Drug Screening Questionnaire" form and a "Drug Screening Questionnaire – Hair Testing" form [Department's Exhibit (DX) 3] The Respondent signed and dated the form and Lieutenant Perrone signed the "Drug Screening Questionnaire – Hair Testing" form as the "collector." The Respondent's right index finger was inked and his fingerprint was entered on these forms. The Respondent's drug screening number was entered on two "Specimen Drug Screening Custody and Control" forms (CCF). These identical forms contained pre-printed "Specimen ID" numbers. On one form the Specimen ID number was J306478 (DX 4), and on the other form the Specimen ID number was J541589 (DX 5). The Respondent signed and dated each of the forms under the "Donor Certification" statement and signed both forms as the

“Donor.” Lieutenant Perrone was assisted by Police Officer Arayaes, assigned to the Medical Division’s Drug Screening Unit. The Respondent cut off samples of his pubic hair and these hair samples were placed into tin foil, sealed and then placed into the packaging materials that were delivered to Psychomedics Corporation (Psychomedics). [The Respondent’s attorney stipulated that the Respondent was not challenging the hair sample collection procedures or the chain of custody of the Respondent’s pubic hair samples].

Dr. Thomas Cairns

Dr. Cairns, the Senior Scientific Advisor, former vice president for research and development, and former lab director for Psychomedics, testified that Psychomedics’ testing laboratory in Culver City, California is licensed as a testing facility by the New York State Department of Health (NYSDOH) to analyze hair for drug content and that Psychomedics’ cocaine testing methodology was approved in 2001. Cairns was stipulated to be an expert in the field of forensic toxicology and in the area of testing hair for the presence of drugs based on the qualifications cited in his curriculum vitae (DX 1).

Cairns explained that when cocaine is ingested, it enters the blood stream and passes through the liver which metabolizes the cocaine and produces water soluble benzoylecgonine (BE), the principal cocaine metabolite that is produced in the body when cocaine is ingested and metabolized. Blood entering hair follicles carries some of the ingested cocaine with it and the cocaine is trapped there. Since hair grows at a predictable rate, one half inch per month, hair acts as a time recorder as to when the cocaine was ingested.

Cairns interpreted the data contained in the laboratory data package produced by Psychemedics which details the analytical results of the testing of the Respondent's hair samples (DX 2). He personally prepared this report which shows that the chain of custody regarding the Respondent's hair samples was intact. The Respondent's two hair samples, received by Psychemedics as Specimen ID numbers J306478 and J541589, were assigned internal Psychemedics sample numbers 115780660 and 410019317.

He testified that the analytical results show that when one of the Respondent's samples was initially tested, it screened presumptive positive for cocaine when subjected to the radioimmunoassay (RIA) screening test. As a result, following lab protocol, both of the Respondent's hair samples were then separately tested via liquid chromatography mass spectrometry (LC/MS/MS) instrumentation. The LC/MS/MS test results showed that both samples tested positive for cocaine at a concentration above the U.S. Food and Drug Administration (FDA)-established administrative reporting cut-off level of five nanograms of cocaine per ten milligrams of hair which is also used by NYSDOH and this Department. Sample 1 tested positive at 11.5 nanograms of cocaine per ten milligrams of hair and Sample 2 tested positive at 10.5 nanograms of cocaine per ten milligrams of hair.

Cairns further testified that the LC/MS/MS test results show that both of the Respondent's hair samples also tested positive for the presence of BE. Sample 1 tested positive for BE at 1.2 nanograms of BE per ten milligrams of hair and Sample 2 also tested positive for BE at 1.2 nanograms of BE per ten milligrams of hair. Cairns explained that these two BE results were reported as positive results because a BE result is considered positive if the BE level detected is five per cent of the cocaine level. In both of the Respondent's hair samples the BE level was ten per cent of the cocaine level

detected. The Respondent's hair samples were subjected to a series of external washes, to eliminate any possible external cocaine contamination, before they were tested. The laboratory data package shows that the final wash tested "zero" nanograms for cocaine.

Cairns opined that the Respondent's hair samples reflected cocaine ingestion that occurred within 18 months of one week before the date his pubic hair samples were collected, based on the fact that it is well known pubic hair has an 18 month growth period. Cairns testified that when pubic hair stops growing after the 18 month growth period, it is dormant and is not being nourished by the bloodstream. Cairns further opined that the Respondent's hair samples would not reflect cocaine ingestion that occurred within the five to seven day period immediately preceding the June 7, 2008 date of the collection of his pubic hair samples since it can take up to seven days for a pubic hair follicle to produce a hair strand that can be clipped off at skin level.

On cross-examination, Cairns acknowledged that Psychemedics is a for-profit corporation testing laboratory. He noted that the FDA's administrative reporting cut-off level of five nanograms of cocaine per ten milligrams of hair is such a widely utilized and respected standard that it has been included in a State of Florida statute. He opined that the LC/MS/MS test results reflected "multiple ingestions" of cocaine by the Respondent. He testified that stomach acids severely affect the ability of cocaine to enter the bloodstream. In a report to Congress, researchers cited that a 70% reduction in the amount of cocaine that is transmitted into the bloodstream takes place when cocaine passes into the bloodstream through the stomach because stomach acids destroy 70% of the cocaine that has been ingested. He testified that there has been little research regarding the transmission of BE from the stomach to the bloodstream. Cairns

acknowledged that samples must contain a minimum of 35 milligrams of hair because multiple tests are performed on samples.

Police Officer Tolentino Nazaire

Officer Tolentino Nazaire testified that on January 19, 2008, he was assigned to a Conditions Unit when he observed “two individuals engaged in sexual acts” inside a car. He ordered them to step out. One of the individuals, Mandell Deck, dropped something on the ground. When Nazaire determined that he had dropped crack cocaine, he arrested Deck for Criminal Possession of a Controlled Substance. Deck, who began crying, told Nazaire “my partner is on the job.” Deck offered a PBA card. At the 75 Precinct, as Nazaire was processing Deck’s arrest, the Respondent telephoned him. Nazaire told him that since Deck had possessed crack cocaine he was being arrested for Criminal Possession of a Controlled Substance. The Respondent asked Nazaire if Deck had shown him the PBA card (that had the Respondent’s shield number on the front and his name on the back of the card) and then asked him if he could extend Deck a courtesy. The Respondent also asked him if he could issue Deck a Desk Appearance Ticket (DAT) regarding the arrest. The Respondent also asked him if there was a PBA delegate there.

On cross-examination, Nazaire acknowledged that police officers sometimes extend a courtesy to a fellow officer regarding minor infractions but that he could not extend a courtesy to the Respondent regarding Deck because Deck was being charged with Criminal Possession of a Controlled Substance, a crime. Nazaire testified that this was the first time that he had arrested someone who possessed a PBA card with a shield number on the front. Nazaire testified that he called IAB to get a log number. He “asked

around” for a PBA delegate but could not find one. Nazaire testified that “it takes a lot of work” to get a DAT approved because “you have to get bosses’ approval.”

Lieutenant Edward Gonzalez

Lieutenant Gonzalez, assigned to IAB Group 22, testified that when Deck was arrested on June 7, 2008, Deck was in possession of a 2007 New York City Police Department Parking Permit (Parking Permit) that was inside a car that the Respondent had lent him and that the Respondent should not have been using a 2007 Parking Permit. Gonzalez further testified that the Respondent was directed to produce his 2008 New York City Police Department Parking Permit, but he failed to comply with this order. Gonzalez also testified that at his official Department interview on July 31, 2008, the Respondent admitted that he had continued his association with Deck by residing with Deck even though the Respondent stated that he was aware that Deck had been arrested in January, 2008, and again in June, 2008.

On cross-examination, Gonzalez testified that although Deck’s arresting officer probably should have vouchered the car for safekeeping he was not required to do so because the car was not a stolen car. As to whether the arresting officer should have vouchered the Parking Permit, which was Department property and which the arresting officer left inside the car, Gonzalez testified that this was a “judgment call” which the arresting officer should have discussed with a supervisor. Gonzalez testified that because Parking Permits are issued to the officer, not to the car, the Respondent was supposed to remove his Parking Permit whenever he loaned his car to someone else.

The Respondent's Case

The Respondent called Mandell Deck as a witness and testified in his own behalf.

Mandell Deck

Mandell Deck, who is 33 years old, resides in [REDACTED] and is currently unemployed, testified that although he and the Respondent are "not together anymore" they had a "relationship" and lived together. The Respondent was unaware that he was a cocaine user. Although he used drugs "a few times" inside the Respondent's residence, he never used cocaine when the Respondent was at home. Deck recalled that he was arrested in June, 2008, for possessing crack cocaine after he had purchased \$40 worth of crack cocaine in Brooklyn. He was accepted into the Treatment Alternatives for Street Crime (TASC) program. He testified that he sometimes "put a little" rock cocaine into drinking beverages, such as Red Bull, because "the idea was" that doing this would not only prevent dehydration, it would also "keep the high going." When Deck was asked whether someone on the street had told him this or whether he had thought of it himself, he responded that "the idea," which he described as "sick logic," was "just something you magically make up in your mind." He testified that "there is a high probability" that he put rock cocaine into drinking beverages which the Respondent had access to because they shared a refrigerator.

On cross-examination, Deck testified that just before he was arrested in June, 2008, his usage increased and he was smoking rock cocaine every other day. He described \$40 worth of crack cocaine as "a little pebble." He and the Respondent jointly owned the house they lived in. He conceded that he never measured the amount of

cocaine when he placed it into drinking beverages and that he was “not sure” how much cocaine he put into beverages or how often he put cocaine into beverages.

The Respondent

The Respondent testified that Deck was his domestic partner for 15 years but that he had “no idea” that Deck was a cocaine user. After he learned of Deck’s arrest, he telephoned the 75 Precinct and requested a courtesy call. The Respondent testified that he “might” have asked Nazaire if he could issue Deck a DAT regarding his arrest. The Respondent testified he owned two cars and that he “assumed” that he had a New York City Police Department Parking Permit in each car. The Respondent admitted that he was supposed to have already turned in his 2007 New York City Police Department Parking Permit and that his failure to turn it in was “an oversight on my part.” The Respondent testified that he was “extremely surprised” when, on June 19, 2008, he was told that his hair samples had tested positive for cocaine because he was not aware that Deck was putting cocaine into beverages they shared.

On cross-examination, the Respondent was asked to recall the date that Deck first told him that he had been putting cocaine into beverages they shared. He recalled that Deck first told him this “a month or so later...sometime after the PG (Patrol Guide) hearing,” but he was “not sure if it was in August” that Deck told him this. After he learned that Deck was putting cocaine into beverages they shared, he never told anyone and he did not fill out an accidental ingestion form that he had unknowingly consumed cocaine placed into beverages he drank. He continued to reside with Deck after his two arrests because he was not sure that Deck was in fact guilty.

Recall testimony of Dr. Thomas Cairns

Dr. Cairns testified that he was present in the trial room during the testimony of Mandell Deck. Cairns opined that even if Deck had dropped a pebble of crack into Red Bull and juice drinks that the Respondent consumed, this would not have caused the Respondent's hair samples to test positive for cocaine even at the five nanograms of cocaine per ten milligrams of hair level which is the cutoff-level for reporting a positive result used by this Department, NYSDOH and FDA. Cairns explained that because Red Bull, Ginseng tea and juice drinks have an acidic matrix, the acid in these drinks would "degrade" a pebble of crack. Also, after the liquid was consumed, the Respondent's natural stomach acids would further degrade the cocaine by 70% of the cocaine remaining in the liquid.

Disciplinary Case No. 85089/09The Department's Case

The Department called Police Officer Khary Holland as its only witness.

Police Officer Khary Holland

Police Officer Holland, assigned to Transit District 20, testified that on February 6, 2009, he was on duty, in uniform, assigned to a fixed post inside the subway station at 71st and Continental Avenue, Queens. One of his duties was to check the bathrooms in the station. He had previously made arrests for public lewdness inside the station's men's bathroom. When he entered the station's men's bathroom, he observed two men standing at adjoining urinals with no partition between them. The two men were facing each other

and “they were looking at each other’s genital area and masturbating,” moving their arms in an “upward and downward” motion. Holland could see that the Respondent’s penis was erect. The Respondent turned away from Holland and “tried to put his penis away” inside his pants. Holland told the two men to come out of the bathroom and he asked them to produce identification. As Holland was transmitting over his radio that he had “a 10-12 times two,” the Respondent asked to speak to him. The Respondent told him that he was “on the job” and that he “worked for IAB.” The Respondent also told him that he “couldn’t afford another hit” and he asked Holland “if I could let him go.” When Holland’s partner arrived at the scene, both men were handcuffed and arrested for public lewdness.

On cross-examination, Holland was asked to recall the colors of the walls and floor in the bathroom. He conceded that the bathroom was “dirty” and “dark.” He did no check to see if the urinals were working that day. He saw no red tape on either of the two urinals in the bathroom and he saw no black plastic on either of the two urinals. He recalled that the sink in the bathroom was ceramic. He has made about ten arrests for public lewdness inside the station’s men’s bathroom. The bathroom has two stalls, without doors, and is lighted by fluorescent lights on the ceiling. The bathroom has two doors which are always kept open. He estimated that it was “maybe one or two feet” from the doorway to the urinals but although they were close, a person would not be able to reach from the doorway to the urinals. He recalled that the sink in the bathroom was “probably closer” to the doorway than the urinals. The Respondent was standing at the urinal closest to the sink. He was facing the other urinal at an angle. When Holland was shown a photo of the inside of a men’s bathroom, he stated that he could not verify that

the photo was of the men's bathroom at 71st and Continental Avenue, because the sink looked different. On redirect-examination, Holland testified that neither of the men indicated that they saw him as he entered the bathroom and that they continued to move their arms as they masturbated for "a few seconds" before they noticed that he was there.

The Respondent's Case

The Respondent testified in his own behalf.

The Respondent

The Respondent testified that on February 6, 2009, he went to the subway station at 71st and Continental Avenue, Queens, because he had agreed to meet a friend by the staircase. He went inside the men's bathroom, which he had used earlier that same day, because he had to urinate. Another man was using the urinal, so he stood near the sink, facing the wall by the sink, while he waited for him to finish. He was about six feet away from the man. That was where he was standing, with his pants on and pants buckled closed, when Officer Holland entered the men's bathroom. Holland ordered him and the other man to step outside and they were handcuffed and arrested. After he was released from custody at Transit District 20, he returned to the subway station at 71st and Continental Avenue and took a photo of the inside of the men's bathroom (RX A).

On cross-examination, the Respondent testified that he was not aware until he was arrested that the men's bathroom inside the subway station at 71st and Continental Avenue was known for sexual activity. He was "not sure" if the other man in the bathroom was masturbating because the man was facing the urinal.

FINDINGS AND ANALYSISDisciplinary Case No. 84301/08Specification Nos. 1 & 2The Respondent's ability to obtain cocaine for personal use

It is not disputed that during the period of time relevant to these charges, the Respondent resided with Mandell Deck who was regularly purchasing, possessing and ingesting cocaine. Thus, if the Respondent chose to use cocaine during this period of time, he had ready access to cocaine through Deck, his domestic partner.

"For cause" order to submit hair samples and sample collection and testing procedures

The Respondent does not challenge the order that directed him to report to the Medical Division to provide urine and hair samples on June 7, 2008. Nor does he contest that his hair samples were properly collected, packaged, sealed and transported to Psychomedics for testing. The Respondent did not challenge the RIA test that was utilized by Psychomedics to initially analyze one of the Respondent's two hair samples for the presence of cocaine, or the LC/MS/MS instrumentation that was utilized by Psychomedics to analyze both of the Respondent's hair samples to quantify the concentration levels in the samples of cocaine and benzoylecgonine (BE), the principal cocaine metabolite that is produced in the body when cocaine is ingested.

Cairns, the Senior Scientific Advisor and former lab director for Psychomedics, was stipulated to be an expert in the field of testing hair for drug content based on the qualifications listed in his curriculum vitae (DX 1). Cairns explained and interpreted the

data contained in the laboratory data package produced by Psychemedics which details the analytical results of the testing of the Respondent's hair samples (DX 2). Although Cairns did not personally conduct any of these tests, due process does not require that the technicians who performed these tests testify at the disciplinary hearing because testing results may be admitted and credited based on the testimony of the laboratory director where, as here, the reliability of the testing procedure used has been established, the director is familiar with all the steps taken, the director is subjected to cross-examination and no claim is raised that there was a specific defect in the testing procedures.¹ The Respondent did not allege any specific defect in the chain of custody or testing procedures utilized by Psychemedics.

Cairns testified that the testing data shows that after one of the Respondent's hair samples tested positive for cocaine via the scientifically recognized RIA screening method, both of the Respondent's hair samples were separately subjected to testing utilizing the scientifically recognized LC/MS/MS method. Cairns testified that the LC/MS/MS test results showed that both of the Respondent's samples tested positive for cocaine at a concentration above the FDA-established administrative reporting cut-off level and that these results reflected "multiple ingestions" of cocaine by the Respondent. Cairns further testified that the LC/MS/MS analytical results showing the presence of BE in the Respondent's hair samples establish that he ingested the cocaine that was detected in his samples.

Where, as here, a recognized screening test positive result is confirmed when the same sample is subjected to LC/MS/MS analysis, such testing results have been found to

¹ Gordon v. Brown, 84 N.Y.2d 574, 579-580 (1994).

constitute substantial scientific evidence of the presence of cocaine.² Based on all of the above, the test results obtained by Psychemedics regarding both of the Respondent's hair samples constitute substantial evidence that the Respondent possessed and ingested cocaine³ between December 7, 2006 and May 31, 2008.⁴

Affirmative defense of involuntary ingestion

The Respondent raised an affirmative defense of involuntary ingestion by contending that his positive test results were the result of unknowing ingestion of cocaine. The only evidence the Respondent offered to attempt to meet his burden of persuasion regarding this affirmative defense was the testimony of Deck.

Deck asserted that he hid his cocaine use from the Respondent and that there was "a high probability" that he may have sometimes dropped "a little" crack pebble into containers of beverages that he stored inside a refrigerator they shared. Deck had a strong motive to lie to try to help the Respondent because he was his domestic partner and because it was Deck's fault that the Respondent was ordered to provide the hair samples which tested positive for cocaine since the DOLE order was issued as a result of Deck's arrest for possession of cocaine. Deck's testimony that, even though he knew that the Respondent was a police officer and was not allowed to use drugs, he put cocaine into beverage containers they shared without telling the Respondent is not believable. When

² McBride v. Kelly, 215 A.D.2d 161 (1st Dept 1995).

³ McGovern v. Safir, 266 A.D.2d 107 (1st Dept 1999).

⁴ Although the charges cite to June 7, 2008 (the day the Respondent's hair samples were collected), Dr. Cairns testified that since it can take seven days for pubic hair to grow long enough to be clipped off at skin level, the Respondent's pubic hair samples would not reflect cocaine he ingested during the week immediately preceding June 7, 2008. Although cocaine can be detected in urine up to 72 hours after ingestion, the Respondent's urine sample tested negative for cocaine.

Deck was asked whether someone had given him "the idea" that if he put cocaine into drinking beverages it would "keep the high going," Deck responded that no one had told him this and that this "sick logic" was "just something you magically make up in your mind."

Moreover, even if I credited Deck's testimony that he sometimes dropped a pebble of crack into drinks that the Respondent consumed, this testimony does not account for the levels of cocaine detected in the Respondent's hair samples. Cairns opined that even if Deck had dropped a pebble of crack into Red Bull and juice drinks that the Respondent consumed, this would not have caused the Respondent's hair samples to test positive for cocaine at a concentration above the FDA and NYSDOH established administrative reporting cut-off level of five nanograms of cocaine per ten milligrams of hair. Cairns explained that because Red Bull and juice drinks have an acidic matrix, the acid in these drinks would substantially "degrade" the pebble of crack. Also, after the liquid was consumed, stomach acid would further "degrade" by "70%" whatever dissolved cocaine was still in the liquid.

The Respondent asserted that he was "extremely surprised" when, on June 19, 2008, he was told that he was being suspended because his hair samples had tested positive for cocaine because he had "no idea" that Deck was a cocaine user. Yet, when the Respondent was asked to specifically recall the date that Deck first told him that he had been putting cocaine into beverages they shared, the Respondent offered the vague time frame that Deck first told him this "a month or so later...sometime after the PG (Patrol Guide) hearing," although the Respondent was "not sure if it was in August." If the Respondent truly had no idea that Deck was putting cocaine into beverages they

shared, he should have been able to recall the specific day that Deck dropped this bombshell on him because the Respondent's discovery that his 15-year domestic partner was putting cocaine into beverages he consumed was a highly significant event. The Respondent's asserted inability to even state with certainty what month it was that he first learned that Deck was putting cocaine into beverages they shared renders all of his testimony not believable. When his implausibly vague testimony about when he first learned this is viewed in conjunction with his admissions that after he found out he never completed an accidental ingestion form asserting that he had unknowingly consumed cocaine and that he never informed anyone about what Deck had told him, the Respondent's entire testimony is discredited.

Based on the above, I find that the Respondent did not meet his burden of persuasion regarding his affirmative defense of involuntary ingestion.⁵

Based on this record, the only conclusion that can be reached is that the Respondent possessed cocaine and that he knowingly ingested this cocaine.

The Respondent is found Guilty.

Specification No. 3

The Respondent is charged with associating with Deck, a person reasonably believed to be engaged in, likely to engage in or to have engaged in criminal activity. Police Officer Nazaire arrested Deck on January 19, 2008, for Criminal Possession of a Controlled Substance. Gonzalez testified that the Respondent admitted at his official Department interview that he continued to reside with Deck even though the Respondent was aware that Deck had been arrested in January, 2008, and again on June 7, 2008 for

⁵ Green v. Sielaff, 198 A.D. 2d 113 (1st Dept 1993).

possessing a controlled substance. At this trial, the Respondent admitted that after he learned of Deck's arrest, he telephoned the 75 Precinct and requested a courtesy call. The Respondent also admitted that he "might" have asked Nazaire if he could issue Deck a Desk Appearance Ticket regarding his arrest. The Respondent testified that he continued to reside with Deck despite his two arrests because he was not sure that Deck was in fact guilty of the crimes for which he had been arrested. This explanation is an insufficient justification for the Respondent's continuing association with someone he had reason to believe was involved in criminal activity.

The Respondent is found Guilty.

Specification Nos. 4 & 5

It is charged that the Respondent engaged in conduct prejudicial to the good order, efficiency or discipline of the Department by wrongfully possessing both a 2007 and a 2008 New York City Police Department Parking Permit. Gonzalez testified that when Deck was arrested on June 7, 2008, Deck was in possession of a 2007 New York City Police Department Parking Permit. The Respondent testified that he owned two cars and that he "assumed" that he had a New York City Police Department Parking Permit in each car. The Respondent admitted that he was supposed to have already turned in his 2007 New York City Police Department Parking Permit and that his failure to turn it in was "an oversight on my part." I also credit Gonzalez testimony that the Respondent was directed to produce his 2008 New York City Police Department Parking Permit, but he failed to do so.

The Respondent is found Guilty.

Disciplinary Case No. 85089/09

It is charged that on February 6, 2009, the Respondent intentionally exposed the private or intimate parts of his body in a lewd manner, or committed any other lewd act, in a bathroom located inside the subway station at 71st and Continental Avenue, Queens. The Respondent acknowledged that he and another man were inside the bathroom when Officer Holland entered the bathroom. I credit the testimony of Officer Holland, who was not shown to have any reason to lie about what he saw, that when he entered the bathroom, he observed two men standing at adjoining urinals facing each other, that "they were looking at each other's genital area and masturbating" by moving their arms in an "upward and downward" motion, that he could clearly see that the Respondent's penis was erect, and that when the Respondent realized that he was there, he tried to put his penis away inside his pants.

The Respondent is found Guilty.

PENALTY

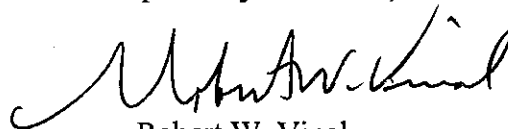
In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on June 30, 1992. Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Since the Respondent has violated the Department's rule against using illegal drugs and has also been found guilty of engaging in lewd conduct in a public bathroom in

a subway station, I am left with no alternative but to recommend that he be DISMISSED from the New York City Police Department.

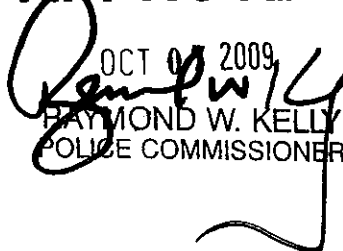
Respectfully submitted,



Robert W. Vinal

Assistant Deputy Commissioner - Trials

APPROVED



OCT 9 2009
RAYMOND W. KELLY
POLICE COMMISSIONER

**POLICE DEPARTMENT
CITY OF NEW YORK**

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: **CONFIDENTIAL MEMORANDUM
POLICE OFFICER DENTON LEWIS
TAX REGISTRY NO. 901836
DISCIPLINARY CASE NOS. 84301/08 & 85089/09**

The Respondent received an overall rating of 3.5 on his 2007 annual performance evaluation, 3.5 on his 2006 evaluation, and 3.5 on his 2005 evaluation. [REDACTED]

[REDACTED] He has been awarded one Meritorious Police Duty medal and one Excellent Police Duty medal.

He has a prior formal disciplinary record. In 2005, he forfeited 15 days after he pleaded guilty to having failed to safeguard his firearm.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner – Trials